



GOLD MEDAL INJURY LAW

WASHINGTON

253-215-1271

7602 BRIDGEPORT WAY W, SUITE 3B
LAKEWOOD, WASHINGTON 98499

FAX: (877) 813-6042

NEVADA

702-304-7625

2001 S RAINBOW BLVD, SUITE 140
LAS VEGAS, NEVADA 89146

FAX: (702) 442-1852

{{TODAY_LONG}}

SENT VIA EMAIL AND FACSIMILE

{{insurance2.deftdriver.name}}
{{insurance2.deftdriver.address1line1}} {{insurance2.deftdriver.address1line2}}
{{insurance2.deftdriver.address1city}}, {{insurance2.deftdriver.address1state}},
{{insurance2.deftdriver.address1zip}}
F: {{insurance2.deftdriver.fax1}}
E: {{insurance2.deftdriver.email1}}

Re:

Our Client(s): {{fullname}}, _____, and _____
Date of Loss: {{incidentDate | longDate }}

THE LAW REQUIRES THAT YOU: OBTAIN AND PRESERVE EVIDENCE

Dear Mr./Ms. {{insurance2.deftdriver.lastname}}

Please be advised that {{FIRM_NAME}} represents the above-named client(s) in regard to the injuries and damages they sustained because of a vehicle crash that occurred on West Cheyenne Ave, North Las Vegas, on {{incidentDate | longDate }}. Specifically, you are instructed to preserve:

(a) All telephone records of the driver of the vehicle,

The failure to obtain and preserve all phone (personal or business) records from the driver including: phone, text and data, will be utilized against you. This office will aggressively pursue a Court Order that you intentionally destroyed such records due to your recognition of fault. Even a finding of Negligence in this regard, can be damning to any defense you may wish to assert.

(b) incident reports, employee and witness statements, employees' notes or documents regarding the incident,

(c) rosters of employees on shift at the time of the incident, electronic or written communications regarding the incident between any employees, third-party claims administrators, or insurance representatives,

(d) investigation materials, photographs of the physical location of the incident, video and audio surveillance recordings depicting the injury incident for one hour prior to and one hour after the incident,

(e) All other documentation and evidence regarding the cleaning, maintenance, repair orders, repairs, and alterations to the defendant's vehicle or location for twelve (12) months before the subject incident to present,

(f) All documentation, write-ups, and licensing of the defendant,

(g) All business and personal phone records, including cell phone records concerning this incident, and

(h) Any other evidence that is potentially relevant to the subject incident, the claims of Mr./Ms. {{lastname}} and the defenses of your client and any other persons or entities that are potentially liable.

As litigation may result from the subject incident, this correspondence is intended to inform you of your affirmative obligation under the law to preserve **all evidence, not just**



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what is listed above, which may be potentially relevant to the claims to be asserted. An entity has a pre-litigation duty to preserve all potentially relevant evidence as soon as it is on notice of a potential legal claim. See, e.g., *Bass-Davis v. Davis*, 122 Nev. 442 (2006).

Please note that even inadvertent misplacement, destruction, or disposal of relevant information related to this incident will be viewed as spoliation of evidence, which has potential serious legal consequences adverse to you **and/or your client**, affecting your legal rights in any legal action filed by our client(s). See, e.g., *Bass-Davis v. Davis*, 122 Nev. 442 (2006).

Thank you in advance for your professional courtesy.

Very Truly Yours,

Randolph Goldberg, ESQ.
{{FIRM_NAME}}

RG/